

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Civil Action No. 17-cv-03070-KLM

DIEGO SEDILLO,

Plaintiff,

v.

LONG VIEW SYSTEMS, CO. (USA),

Defendant.

VERDICT FORM

We, the jury, present our Answers to Questions submitted by the Court, to which we have unanimously agreed:

A. DETERMINATION REGARDING LIABILITY FOR PLAINTIFF'S CLAIMS FOR DISCRIMINATION/HARASSMENT AND RETALIATION UNDER SECTION 1981

Question No. 1: Has Plaintiff Diego Sedillo proven discrimination in violation of Section 1981 (ethnicity/ancestry)?

Yes _____ No X

Question No. 2: Has Plaintiff Diego Sedillo proven harassment (that he was subjected to a hostile work environment) in violation of Section 1981 (ethnicity/ancestry)?

Yes X No _____

Question No. 3: Has Plaintiff Diego Sedillo proven that he was retaliated against because he opposed a practice made unlawful by Section 1981?

Yes _____ No X

If your answer to either Question 1, Question 2, or Question 3 is "yes", you have found for the Plaintiff on one or more of his claims of discrimination and/or retaliation under Section 1981; therefore, proceed to Section B. If your answer is "no" to Questions 1, 2, and 3, then skip Section B as you have found for the

Defendant on the Section 1981 claims; you should therefore proceed to Section C.

B. DETERMINATION OF DAMAGES FOR PLAINTIFF'S CLAIMS UNDER SECTION 1981

Question No. 4: Do you find that Plaintiff Diego Sedillo should be awarded as back pay damages an amount that reasonably compensates Plaintiff for any lost wages and benefits?

Yes _____ No X

If your answer to Question 4 is "yes", what amount of back pay damages do you award him for Defendant's violation(s) of Section 1981?

\$ 0.00

Question No. 5: Any award of back pay damages must be reduced by any amount that the Plaintiff earned or could have earned by reasonable effort. Do you find that Plaintiff's back pay damages award should be reduced?

Yes _____ No X

If your answer to Question 5 is "yes", what amount should be used to reduce (or offset) an amount of back pay damages awarded under Section 1981?

\$ 0.00

Question No. 6: Do you find that Plaintiff should be awarded compensatory damages for any pain, suffering, or mental anguish that Plaintiff experienced as a consequence of Defendant's violation(s) of Section 1981?

Yes X No _____

If your answer to Question 6 is "yes", in what amount?

\$ 25,000.00

Question No. 7: Do you find that Plaintiff should be awarded punitive damages (as defined in Instruction No. 38) for his claim(s) under Section 1981?

Yes _____ No X

If your answer is "yes", what amount of punitive damages, if any, should be assessed against the Defendant?

\$ 0.00

C. DETERMINATION REGARDING LIABILITY FOR PLAINTIFF'S CLAIMS FOR DISCRIMINATION/HARASSMENT AND RETALIATION UNDER TITLE VII

Question No. 8: Has Plaintiff Diego Sedillo proven that he was discriminated against in violation of Title VII (national origin and/or race)?

Yes _____ No X

Question No. 9: Has Plaintiff Diego Sedillo proven harassment (that he was subjected to a hostile work environment) in violation of Title VII (national origin and/or race)?

Yes X No _____

Question No. 10: Has Plaintiff Diego Sedillo proven that he was retaliated against because he opposed a practice made unlawful by Title VII?

Yes _____ No X

If your answer to either Question 8, Question 9, or Question 10 is "yes", you have found for the Plaintiff on one or more of his claims of discrimination and/or retaliation because of race and/or national origin under Title VII; therefore, proceed to Section D. If your answer is "no" to Questions 8, 9, and 10, then skip Section D as you have found for the Defendant on these claims and sign and date the verdict form below (you are done).

D. DETERMINATION OF DAMAGES FOR PLAINTIFF'S CLAIMS UNDER TITLE VII

Question No. 11: Do you find that Plaintiff Diego Sedillo should be awarded as back pay damages an amount that reasonably compensates Plaintiff for any lost wages and benefits?

Yes _____ No X

If your answer to Question 11 is "yes", what amount of back pay damages do you award him for Defendant's violation(s) of Title VII?

\$ 0.00

Question No. 12: Any award of back pay damages must be reduced by any amount that the Plaintiff earned or could have earned by reasonable effort. Do you find that Plaintiff's back pay damages award should be reduced?

Yes _____ No X

If your answer to Question 12 is "yes", what amount should be used to reduce (or offset) an amount of back pay damages awarded under Title VII?

\$ 0.00

Question No. 13: Do you find that Plaintiff should be awarded compensatory damages for any pain, suffering, or mental anguish that Plaintiff experienced as a consequence of Defendant's violation(s) of Title VII?

Yes X No _____

If your answer to Question 13 is "yes", in what amount?

\$ 25,000.00

Question No. 14: Do you find that Plaintiff should be awarded punitive damages (as defined in Instruction No. 38) for his claims under Title VII?

Yes _____ No X

If your answer is "yes", what amount of punitive damages, if any, should be assessed against the Defendant?

\$ 0.00

Please sign and date this Verdict Form on the lines provided below.

Dated this 19 day of April, 2019.

Juror Names' Redacted